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arrested Bryant without probable cause. The majority concluded that the agents had failed to sustain the burden of establishing qualified immunity because their reason for arresting Bryant—their belief that the “Mr. Image” plotting to kill the President in Bryant’s letter could be a pseudonym for Bryant—was not the most reasonable reading of Bryant’s letter:

“Even accepting the ‘alter ego’ theory that by warning what Mr. Image was going to do, Mr. Bryant was in fact communicating what he himself planned to do, the letter read in its entirety does not appear to make a threat against the president. Most of the letter does not even talk about President Reagan. *A more reasonable interpretation of the letter might be that Bryant was trying to convince people of the danger Mr. Image and the conspiracy posed rather than that Bryant was speaking through Mr. Image.*” *Id.*, at 722 (emphasis added).

Our cases establish that qualified immunity shields agents Hunter and Jordan from suit for damages if “a reasonable officer could have believed [Bryant’s arrest] to be lawful, in light of clearly established law and the information the [arresting] officers possessed.” *Anderson v. Creighton*, 483 U. S. 635, 641 (1987). Even law enforcement officials who “reasonably but mistakenly conclude that probable cause is present” are entitled to immunity. *Ibid.* Moreover, because “[t]he entitlement is an *immunity from suit* rather than a mere defense to liability,” *Mitchell v. Forsyth*, 472 U. S. 511, 526 (1985), we repeatedly have stressed the importance of resolving immunity questions at the earliest possible stage in litigation. See *Harlow v. Fitzgerald*, 457 U. S. 800, 818 (1982); *Davis v. Scherer*, 468 U. S. 183, 195 (1984); *Mitchell*, *supra*, at 526; *Malley v. Briggs*, 475 U. S. 335, 341 (1986); *Anderson*, *supra*, at 646, n. 6.

The decision of the Ninth Circuit ignores the import of these decisions. The Court of Appeals’ confusion is evident

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from its statement that “[w]hether a reasonable officer could have believed he had probable cause is a question for the trier of fact, and summary judgment . . . based on lack of probable cause is proper only if there is only one reasonable conclusion a jury could reach.” 903 F. 2d, at 721. This statement of law is wrong for two reasons. First, it routinely places the question of immunity in the hands of the jury. Immunity ordinarily should be decided by the court long before trial. See *Mitchell, supra*, at 527–529. Second, the court should ask whether the agents acted reasonably under settled law in the circumstances, not whether another reasonable, or more reasonable, interpretation of the events can be constructed five years after the fact.

Under settled law, Secret Service Agents Hunter and Jordan are entitled to immunity if a reasonable officer could have believed that probable cause existed to arrest Bryant. Probable cause existed if “at the moment the arrest was made . . . the facts and circumstances within their knowledge and of which they had reasonably trustworthy information were sufficient to warrant a prudent man in believing” that Bryant had violated 18 U. S. C. § 871. *Beck v. Ohio*, 379 U. S. 89, 91 (1964).

When Agents Hunter and Jordan arrested Bryant, they possessed trustworthy information that Bryant had written a letter containing references to an assassination scheme directed against the President, that Bryant was cognizant of the President’s whereabouts, that Bryant had made an oral statement that “[h]e should have been assassinated in Bonn,” 903 F. 2d, at 719, and that Bryant refused to answer questions about whether he intended to harm the President. On the basis of this information, a Magistrate ordered Bryant to be held without bond.

These undisputed facts establish that the Secret Service agents are entitled to qualified immunity. Even if we assumed, *arguendo*, that they (*and* the magistrate) erred in concluding that probable cause existed to arrest Bryant, the

STEVENS, J., dissenting

agents nevertheless would be entitled to qualified immunity because their decision was reasonable, even if mistaken. *Anderson, supra*, at 641.

The qualified immunity standard “gives ample room for mistaken judgments” by protecting “all but the plainly incompetent or those who knowingly violate the law.” *Mallory, supra*, at 343, 341. This accommodation for reasonable error exists because “officials should not err always on the side of caution” because they fear being sued. *Davis, supra*, at 196. Our national experience has taught that this principle is nowhere more important than when the specter of Presidential assassination is raised.

The petition for a writ of certiorari is granted, the judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

*It is so ordered.*

JUSTICE THOMAS took no part in the consideration or decision of this case.

JUSTICE SCALIA, concurring in the judgment.

In my view the Ninth Circuit’s opinion purported to apply the standard for summary judgment that today’s opinion demands. Its error was in finding, on the facts before it, that the standard was not met. Since I think it worthwhile to establish that this Court will not let such a mistake stand with respect to those who guard the life of the President, I concur in the summary reversal.

JUSTICE STEVENS, dissenting.

The question in this case is *not* whether a reasonable officer could have believed that respondent posed a threat to the life of the President. Those “who guard the life of the President,” *ante* this page (SCALIA, J., concurring in judgment), properly rely on the slightest bits of evidence—noth-